

FIRST ENDORSEMENT

Chief Prosecutor, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble, Sr., Department Advocate's Office, March 7, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2023-28247 against Police Officer Luis Sandres, Tax Registry No. 964752. The case was conferenced on February 27, 2024, before Assistant Deputy Commissioner of Trials Anne E. Stone, who approved a Command Discipline Schedule A with the negotiated penalty of a forfeiture of Five (5) vacation days. Charges and Specifications are dismissed for plea purposes.

Andre D. Applewhite

Chief Prosecutor
New York City Civilian Complaint Review Board

**DISPOSITION OF CHARGES**

PD 468-142(Rev. 8-89)-2

CASE NO.
2023-28247BOOK & PAGE NO.
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PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, SANDRES	FIRST LUIS	M.I. D	COMMAND HOUSING PSA 3 ==>SATHOPS-B/N
SHIELD NO. 4509	TAX REGISTRY NO. 964752	SOCIAL SECURITY NO.	DATE APPOINTED 10/18/2017	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Police Officer Luis SANDRES, on or about December 27, 2021, at approximately 1940, while assigned to PSA3 and on duty, in the vicinity of Myrtle Avenue and Marcy Avenue; PSA 3 stationhouse, Kings County, engaged in conduct prejudicial to good order, efficiency, or discipline of the Department, in that PO SANDRES threatened § 87(2)(b) with the use of force.	DISMISSED	A - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule A Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 5.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2. Police Officer Luis SANDRES, on or about December 27, 2021, at approximately 1940, while assigned to PSA3 and on duty, in the vicinity of Myrtle Avenue and Marcy Avenue; PSA 3 stationhouse, Kings County, abused their authority as a member of the New York City Police Department, in that PO SANDRES searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants without sufficient legal authority.	DISMISSED	

DC Brubaker
FIRST DEPUTY COMMISSIONER

3/25/24
DATE

POLICE COMMISSIONER'S APPROVAL☒ Approved☐ Disapproved☐ Other Action (Describe)

Edward A. Cab...
POLICE COMMISSIONER

4/1/24
DATE

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner March 21, 2024. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2023-28247 against Police Officer Luis Sandres, Tax No. 964752, with the recommendation that Police Officer Sandres receive a Schedule "A" Command Discipline, with the forfeiture of five (5) vacation days. Assistant Deputy Commissioner, Trials Anne E. Stone reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I concur. **FOR YOUR APPROVAL.**

DC Kinsella

Tania I. Kinsella

/s/ **FIRST DEPUTY COMMISSIONER**

TIK/jpc

APPROVED

APR 01 2024

Edward A. Caban
EDWARD A. CABAN
POLICE COMMISSIONER